ReciMe Privacy Policy

OUR COMMITMENT TO PRIVACY

This Privacy Policy outlines the commitment of **ReciMe Pty Ltd** (ABN 50 644 943 957) (ReciMe) to protect your personal information.

In this Privacy Policy, “we” and “us” refers to ReciMe Pty Ltd and its subsidiaries (including ReciMe Inc.) and “you” refers to any individual about whom we collect personal information.

This Privacy Policy applies to our websites and our Apps.

This Privacy Policy applies to our users located in all countries in which we do business.

We are an Australian corporation, and we comply with all relevant privacy laws, including the requirements applicable to us under the Australian Privacy Act 1988 (**Privacy Act**), relevant Australian State laws and the privacy laws of other countries in which we operate.

OUR PRIVACY POLICY

Our Privacy Policy sets out how we look after personal information. It explains the kinds of personal information that we collect, and why we collect it. It also describes how we hold, use, and disclose personal information.

By registering as a user for or using our App or our website (**“the Service”**), or by providing personal information to us including through a registration process, you agree to the terms of our Privacy Policy. If you do not agree to our Privacy Policy, please do not use the Service.

When you agree to the terms of our Privacy Policy, you consent to the collection, use, storage and disclosure of your personal information as described in our Privacy Policy.

THE PERSONAL INFORMATION THAT WE COLLECT

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Customise | Reject All | Accept All

- Your name and contact details, including email, address, mailing address, and mobile number
- Identification details, such as date of birth
- Information regarding your use of or interest in our products and services
- How you make payments to us in any transaction, such as payment details. This could include bank account and debit or credit card details
- Your transaction history with us
- Records of communications and dealings with you, such as emails, text, SMS, chat, telephone, and in-person communications
- Information regarding your use of the Service
- Authentication data, including your username and password when you log in via the Service, and the equivalent details as well as an authentication token in respect of your accounts with any third-party websites who have integrated into our platform (for example, social media sites)
- Profile information if you set up an account with us, including any information that you add to any profile that you create through the Service, such as photos and information about yourself
- Information you voluntarily provide about yourself, such as food preferences, lifestyle choices, cuisine choices, nutritional goals and preferences, dietary information, and grocery shopping patterns
- Your device's geo-location when accessing the Service
- Advertising data such as information about your preferences in receiving marketing materials from us and third parties, and your communication preferences
- Data related to groceries or food, such as information relating to any products that you select from a shopping list for purchase from a third-party site
- Information we may collect as part of a survey, customer feedback request, or a competition
- Information that you provide to us, for example, for verification purposes or as evidence in respect of a complaint
- Other information that you provide to us during the course of business

For our employees, employee records that may contain personal information including safety information (e.g. location information, emergency contacts) and travel and right to work information (e.g. copies of passports and visas) and information to pay wages.

We collect information about people who are our suppliers and business partners, or who are employed by our suppliers and business partners. The information we collect is that which we

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you visit our Service or when you access the Service by or through a mobile device.

We may collect information such as:

- Usernames and passwords that you create to access the Service
- Which functions and features you use and how you use them
- Which pages you visit on our website
- Device information, such as the model and ID of the device you use, operating system, telephone number, and mobile phone network
- Server log information, such as details of how you used the service, IP address, hardware settings, browser type, browser language, the date and time of your use, and referral URL
- Information that may uniquely identify your browser or your account
- Location information
- Information relating to your visits to other websites where we have a relation with the other website
- Shopping lists you create, recipe interactions, and grocery transactions you may complete via the Service

If you visit our website, we may collect information on your use of the website, such as pages visited, links clicked, text entered, and mouse or cursor movements, as well as information more commonly collected such as the referring URL, browser, device, operating system, and Internet Protocol ("IP") address. We may use publicly available sources to approximate your geographic region and Internet Service Provider based on your IP address.

We may use your IP address or domain name for internal traffic monitoring and capacity management purposes or to otherwise administer our Service. No personal information is obtained; rather, the patterns and usage of our Service may be tracked for the purposes of providing improved service and content based on aggregate or statistical review of user traffic patterns.

We may use various technologies to collect and store information, including cookies, pixel tags, local storage, such as browser web storage or application data caches, databases, and server logs. These technologies help us track your usage and remember your preferences.

Information collected by the Google Analytics cookie or tracking tag is transmitted to, and stored by, Google in accordance with its privacy practices. To opt out of Google Analytics, please visit: https://tools.google.com/dlpage/gaoptout

For further information about Google's targeted advertising systems, please visit: https://policies.google.com/technologies/partner-sites

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We do not accept responsibility for the content or practices of websites operated by third parties that are linked to or from or that link to our Service.

We do not alter our website's data collection and use practices when we see a Do Not Track signal from your browser.

Tracking Technologies and Cookies

Tracking technologies used are beacons, tags, and scripts to collect and track information and to improve and analyze the Service. The technologies we use may include:

- **Cookies or Browser Cookies.** You can instruct your browser to refuse all Cookies or to indicate when a Cookie is being sent. However, if you do not accept Cookies, you may not be able to use some parts of the Service. Unless you have adjusted your browser setting so that it will refuse Cookies, the Service may use Cookies.
- **Web Beacons.** Certain sections of the Service and our emails may contain small electronic files known as web beacons (also referred to as clear gifs, pixel tags, and single-pixel gifs) that permit us to count users who have visited those pages or opened an email and for other related website statistics (for example, recording the popularity of a certain section and verifying system and server integrity).

Cookies can be Persistent or Session Cookies. Persistent Cookies remain on your personal computer or mobile device when you go offline, while Session Cookies are deleted as soon as you close your web browser.

We use Persistent Cookies for the purposes set out below:

- **Tracking and Performance Cookies**
  Type: Persistent Cookies
  Administered by: Third-Parties
  Purpose: These cookies are used to track information about traffic to our website and how users use our website. The information gathered via these cookies may directly or indirectly identify you as an individual visitor. This is because the information collected is typically linked to a pseudonymous identifier associated with the device you use to access our website. We may also use these cookies to test new pages, features, or new functionality of our website to see how our users react to them.

For more general information about cookies, please visit: www.allaboutcookies.org.

SENSITIVE INFORMATION

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- to provide our products and services to you
- to implement transactions that you participate in via the Service
- to identify you and to assist you to obtain and use our products and services
- to recommend or consider your eligibility for our products and services
- to administer and manage our products and services including the completion of transactions and delivery of products and services acquired
- to invite you to events including online events
- to contact you by email, telephone calls, SMS, or other equivalent forms of electronic communication, such as a mobile application's push notifications regarding updates or informative communications included related to the Service, including the security updates
- to respond to inquiries from you
- to provide you with customer support
- to provide you with information about the Service and how to use the Service
- to monitor and detect possible fraud or breaches of our terms and conditions of service
- to ensure that our Service is used in a legal and responsible manner
- to ensure that you and your account with us comply with all relevant laws and your contractual obligations to us
- to process payments
- to improve our products and services
- to carry out planning and forecasting activities
- to conduct research
- for security purposes, including to perform functions that we believe are necessary to protect the security and proper functioning of the Service
- to comply with our legal obligations, assist in the enforcement of laws, resolve disputes, and enforce agreements
- to investigate or pursue a legal claim
- to administer surveys, contests, or other promotional activities or events sponsored or managed by us or our business partners
- to make special offers related to our products and services
- to gain an understanding of your needs to provide you with better and more personalized products and services tailored to your requirements
- to promote and market our products
- to maintain and update our records
- as otherwise required or authorized by law
- as authorized by you

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We may also aggregate information on the use of the Service in such a way that the information can no longer be related to the specific individuals. We may then use and disclose such aggregated information in the course of our business (including in any promotional or marketing material).

DISCLOSURE OF PERSONAL INFORMATION

We may share your personal information in the following situations:

- with our service providers to monitor and analyze the use of the Service, for payment processing, and to contact you
- to and between our affiliates, who are also covered by this Privacy Policy
- with our business partners to offer you certain products, services, or promotions
- when you share personal information or otherwise interact in the public areas with other users, such information may be viewed by all users and may be publicly distributed outside
- to government agencies, regulators, and law enforcement bodies
- to insurance companies
- to a court or tribunal
- to a person who serves us with a subpoena or other legal document requiring us by law to disclose information or documents about you to them
- to our consultants, contractors, subcontractors, suppliers, service providers, and professional advisors, who assist us in operating our business, for example to payment service providers, customer analytics providers, mail house operators, banks, investigators, and organizations that we engage to deal with you on our behalf
- to anyone who acquires or considers acquiring our assets or business (or part of it)
- With your consent: we may disclose your personal information for any other purpose with your consent.

LOCATION

We conduct our business in Australia and in other countries.

We may disclose information to recipients that are located outside the country in which you are located. We may disclose personal information to contractors and external service providers in and outside of Australia.

The service providers we engage may use international data centers and disaster recovery sites.

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Privacy Act applies, when you provide us with your personal information you consent to the disclosure of your information to an overseas provider. Your consent to this disclosure means that the Requirement does not apply and we will not be held accountable under the Australian Privacy Act for any breaches of the Australian Privacy Act by the overseas provider.

You consent to your personal information being stored in Australia, the United States, and the country in which you reside. We may change locations of the servers that we use, and if we do, we will update this Privacy Policy.

We take all steps reasonably necessary to ensure that your personal information is treated securely and in accordance with this Privacy Policy and no transfer of your personal information will take place to an organization or a country unless there are adequate controls in place, including the security of your personal information.

SECURITY AND STORAGE

We may store customer information (including personal information and payment information) in a variety of formats, including electronic or paper formats.

Transmissions sent to or from the Service are routinely monitored for quality control and systems administration.

We take other reasonable steps to ensure that your personal information is stored securely.

Security is a shared responsibility. If you are a customer or user of our platform, it is important for you to take reasonable steps to enhance security. These include:

- Use up-to-date operating system and browser software.
- When downloading documents, always scan them for viruses and malware.
- Similar to emails, never execute any binary code on your computer or work with a file format you don't understand.
- Office document macros should be disabled when opening documents from the Internet.
- Use a complex, unique password (i.e., one that you don't use anywhere else).
- Never disclose your password to others.
- Accounts should not be shared — it's expected that each user will have their own account.
- Contact us immediately if you notice any unusual activity related to your account.

Although we take care, we cannot guarantee the security of information provided to us via electronic means or stored electronically. No security measures are perfect, and we cannot promise to be able to withstand security threats in all circumstances. We cannot guarantee

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be delayed in updating this list to reflect such changes. Please contact us at support@recime.app if you wish to confirm current information.

Analytics

We may use third-party service providers to monitor and analyze the use of our Service.

Email Marketing

We may use your personal information to contact you with newsletters, marketing or promotional materials, and other information that may be of interest to you. You may opt-out of receiving any, or all, of these communications from us by following the unsubscribe link or instructions provided in any email we send or by contacting us.

Payments

We may provide paid products and/or services within the Service. In that case, we may use third-party services for payment processing (e.g., payment processors).

We will not store or collect your payment card details. That information is provided directly to our third-party payment processors whose use of your personal information is governed by their Privacy Policy.

Minors

Our Service is not intended for anyone under the age of 18. We do not knowingly collect personally identifiable information from anyone under the age of 18. If you are a parent or guardian and you are aware that your child or minor has provided us with Personal Data, please contact us at: support@recime.app.

ACCESS TO AND CORRECTION OF PERSONAL INFORMATION

You have the right to access, update and correct the personal information that we hold about you.

If you would like to access the personal information that we hold about you, please let us know by sending an email to support@recime.app. We will provide you with a copy of your personal information within a reasonable period after the request is made, usually within 30 days. In some cases, we may charge a reasonable fee to provide access to your personal information, but we will never charge you a fee to make a request. If a fee applies, we will advise you before we provide access. Sometimes, we may not be able to provide you with access to all your personal information and, where this is the case, we will tell you why. We

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DELETION

In respect of information stored in the Service, the Service includes working functionality to allow you to download and delete any of the information in your account at no charge.

You cannot (and we will not) delete information that is stored in another user's account.

In respect of information that is held by us but that is not stored in the Service, if you choose to have your personal information deleted from our records, we will do so within a reasonable time of your request to us. If so, we will take reasonable steps to ensure that your personal information is not used (except as may be required by law) by us after your request.

Your information may still be retained, however, to resolve potential or actual disputes, enforce agreements we have with you, or due to technical and legal requirements and constraints related to the security, integrity and operation of the Service.

SPECIFIC JURISDICTIONAL PROVISIONS

EUROPEAN AND UK RESIDENTS

If you are a European or UK resident, you have the right to access personal information we hold about you and to ask that your personal information be corrected, updated, or deleted. If you would like to exercise this right, please contact us through the contact information below.

Additionally, if you are a European resident, we are processing your personal information to fulfill contracts we might have with you, or otherwise to pursue our legitimate business interests listed above. Additionally, your information will be transferred outside of Europe, including to Australia.

In addition to the provisions set out above, we may process your personal information under the following conditions:

- **Consent:** You have given your consent for processing your personal information for one or more specific purposes.
- **Performance of a contract:** Provision of your personal information is necessary for the performance of an agreement with you and/or for any pre-contractual obligations thereof.
- **Legal obligations:** Processing your personal information is necessary for compliance with a legal obligation to which we are subject.
- **Vital interests:** Processing your personal information is necessary in order to protect your vital interests or of another natural person.

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- **Request correction of the Personal Information that we hold about you:** You have the right to have any incomplete or inaccurate information we hold about you corrected.
- **Object to processing of your Personal Information:** This right exists where we are relying on a legitimate interest as the legal basis for our processing and there is something about your particular situation, which makes you want to object to our processing of your personal information on this ground.
- **Request erasure of your Personal Information:** You have the right to ask us to delete or remove your personal information when there is no good reason for us to continue processing it.
- **Request the transfer of your Personal Information:** We will provide to you, or to a third-party you have chosen, your personal information in a structured, commonly used, machine-readable format. Please note that this right only applies to automated information which you initially provided consent for us to use or where we used the information to perform a contract with you.
- **Withdraw your consent:** You have the right to withdraw your consent on using your personal information. If you withdraw your consent, we may not be able to provide you with access to certain specific functionalities of the Service.

If you would like to exercise the foregoing rights, you may email us at: support@recime.app. Please note that we may ask you to verify your identity before responding to such requests. If you make a request, we will try our best to respond to you as soon as possible.

The data controller is ReciMe Pty Ltd.

We have appointed a European and UK representative to act on our behalf regarding our compliance with the EU and UK General Data Protection Regulation. If you are based in the EEA or UK, you may contact our European or UK representative regarding data protection matters relevant to you. Details for our European and UK representative are as follows:

Rickert Rechtsanwaltsgesellschaft mbH
- ReciMe Pty Ltd -
Colmantstraße 15
53115 Bonn
Germany
art-27-rep-recime@rickert.law

Further, if the Client uses the UK-GDPR representative service, the Rickert Services UK is designated as the Client's representative. The Client may use the following data to announce the designation to be included in the information according to Art. 13 GDPR:

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This notice to California residents is provided under California law, including the California Consumer Privacy Act ("CCPA"), Cal. Civ. Code 1798.100, et seq. This notice supplements and is incorporated into our Privacy Policy by explaining your privacy rights if you are a California resident, providing our "notice at collection," and providing certain mandated disclosures about our treatment of California residents' information, both online and offline.

Right to Access

If you are a California resident, you have the right to request, up to two times each year, access to categories and specific pieces of personal information about you that we collect, use, disclose, and sell.

Right to Delete

If you are a California resident, you have the right to request that we delete personal information that we collect from you, subject to applicable legal exceptions.

Right to Opt Out of Sale of Personal Information

If you are a California resident, you have the right to "opt out" of the "sale" of your "personal information" to "third parties" (as those terms are defined in the CCPA).

If you wish to make such a request or to opt out, please contact us by email on the email address below. Before completing your request, we may need to verify your identity.

Our Privacy Policy above sets out any mandatory disclosures required under the CCPA.

Virginia United States Residents' Rights

Virginia is a State in the United States. Virginia law provides Virginia residents with the rights listed below.

Right to Access

You have the right to confirm whether we are processing your personal data and to access your personal data.

Right to Correct

You have the right to correct inaccuracies in your personal data, taking into account the nature of the personal data and the purposes of the processing.

Right to Delete

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Our Privacy Policy above sets out any mandatory disclosures required under Virginia laws.

GENERAL

Other important agreements that govern your use of the Service

In addition to our Privacy Policy, your rights and obligations concerning Service are governed by our Client Agreement. Please review the relevant Client Agreement carefully as you must agree to comply before you use the Service.

Business transfers

We reserve the right to transfer information (including personal information) that you provide or that we otherwise collect in connection with a sale or transfer of assets or of any portion of our business.

Links to other sites

Our Service may contain links to other websites. We are not responsible for the privacy practices or the content of those other websites. The privacy practices applicable to those other websites may differ substantially from ours, so we advise you to read the privacy policy of those other websites before using them.

Links from other sites

Additionally, there may be third party websites that may be providing links to our website without our knowledge or control. We are not responsible for the content of any third-party websites, expressly disclaim any statements or assertions made on such websites, and deny all liability associated with your use of, and the content on, such other websites or advertisements contained therein.

FURTHER INFORMATION AND COMPLAINTS

For further information, or if you would like to make a complaint about our use, handling or disclosure of your personal information, please contact us via email at: support@recime.app. Following receipt of your complaint, we will investigate and respond to you within a reasonable period of time.

If you are not satisfied with our response, you may also contact the relevant regulator such as the Australian Information Commissioner. As at the date of this Privacy Policy, the contact details are as follows:

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CHANGES TO THIS POLICY

We regularly review this Privacy Policy and our privacy practices.

From time to time, we will change this Privacy Policy. If we do, we will update the Privacy Policy on our website. The changes will come into effect immediately upon notification on our website.

If the changes are significant, we will aim to provide customers with an email notification of the changes.

You should check our website from time to time to understand how the current version of our Privacy Policy applies to you.

Last updated on: 18 November 2024

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